

		“From the Judiciary’s institutional perspective, moreover, allowing a case to proceed simultaneously in the district court and the court of appeals creates the possibility that the district court will waste scarce judicial resources – which could be devoted to other pressing criminal or civil matters – on a dispute that will ultimately head to arbitration in any event. That scenario represents the ‘worst possible outcome’ for parties and the courts: litigating a dispute in the district court only for the court of appeals to ‘reverse and order the dispute arbitrated.’” (<i>Coinbase, Inc. v. Bielski</i> (2023) 599 U.S. 736, 743.) Here, while it is true that a stay of this action will delay Plaintiffs’ ability to recoup losses from Defendants, a stay would also avoid the possibility of Plaintiffs being forced to expend financial resources to litigate both, before this court, and potentially within arbitration, depending on the outcome of the appeal. In opposition to a stay, Plaintiffs submit the Declaration of Yvonne Aivan Murray, who declares: “[T]here is no way we will be able to afford to retain appellate counsel if this Court were to grant Tesla’s motion to stay....” (§3 of Murray Declaration); however, the need for appellate counsel is unaffected by the outcome of this motion, as this motion will have no effect on the appeal being pursued by Defendants. Given the appeal is being pursued regardless, staying this action will only reduce the financial burden placed on Plaintiffs, as it will prevent simultaneous litigation.
53	Scott vs. Placentia – Yorba Linda Unified School District 25-01489479	Demurrer to Amended Complaint Defendant Placentia-Yorba Linda Unified School District’s Demurrer to first and second causes of action contained in Plaintiff Beth Scott’s First Amended Complaint is SUSTAINED with leave to amend. <i>General Legal Authority</i> To bring any cause of action or lawsuit against a public entity, the plaintiff must have statutory authority to do so: “Except as otherwise provided by statute ... [a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov’t Code § 815(a).) By statute, a public entity is vicariously liable “for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.” (Gov’t Code § 815.2.) Further, a public entity may itself be liable for violating a mandatory duty imposed by statute: Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty. (Gov’t Code § 815.6.) Moreover, in order to state a cause of action against a public entity, “every fact material to the existence of its statutory liability must be pleaded with

		particularity.” (<i>Lopez v. Southern California Rapid Transit District</i> (1985) 40 Cal.3d 780, 795.) A cause of action against a government entity must specify the statutory basis for liability. (Weil & Brown, Civ. Proc. Before Trial, Ch. 6-B, § 6:199.11, citing <i>Searcy v. Hemet Unified School Dist.</i> (1986) 177 Cal.App.3d 792, 802, and <i>Susman v. City of Los Angeles</i> (1969) 269 Cal.App.2d 803, 809.) <i>First Cause of Action for Breach of Contract (Education Code § 44951)</i> “The essential elements of a claim of breach of contract, whether express or implied, are the contract, plaintiff’s performance or excuse for nonperformance, defendant’s breach, and the resulting damages to plaintiff.” (<i>San Mateo Union High School Dist. v. County of San Mateo</i> (2013) 213 Cal.App.4th 418, 439.) California public employment is held not by contract, but by statute. (<i>Kim v. Regents of University of California</i> (2000) 80 Cal.App.4th 160, 164, citing <i>Miller v. State of California</i> (1977) 18 Cal.3d 808, 813.) Civil service employees cannot state a cause of action for breach of contract. (<i>Id.</i>, citing <i>Shoemaker v. Myers</i> (1990) 52 Cal.3d 1, 23–24.) This same general principle applies to civil service and noncivil service public employees alike. (<i>Id.</i>, citing <i>Hill v. City of Long Beach</i> (1995) 33 Cal.App.4th 1684, 1690.) Education Code section 44951 requires a school district to provide written notice by March 15 to a certificated employee serving in an administrative or supervisory position that the employee may be released from that position for the following school year; absent timely notice, the employee is entitled to continue in the position. (Ed. Code, § 44951; see <i>Hayes v. Temecula Valley Unified School Dist.</i> (2018) 21 Cal.App.5th 735, 739-740, 747-748.) The First Amended Complaint (FAC) alleges that in or about March 2024, Plaintiff received and signed a February 29, 2024 “NOTICE OF RELEASE/REASSIGNMENT from Administrative Position” stating: “Pursuant to California Education Code section 44951, notice is hereby given that you will be released from your current administrative position as Counselor on Special Assignment, effective June 20, 2024, and will be reassigned to a certificated position for the 2024-25 school year for which you are qualified, consistent with your credentialing. The District will notify you of your assignment for the 2024-25 school year before June 30, 2024. The Board of Trustees authorized the issuance of this notice at its meeting on January 16, 2024.” (FAC ¶ 27.) The FAC further alleges Defendant later refused to honor the reassignment described in the notice, which Plaintiff contends violated Education Code section 44951 and caused her damages. (FAC ¶¶ 29-30.) The FAC fails to adequately allege a cause of action for breach of contract or violation of Education Code section 44951. The February 29, 2024 letter was not a contract, but was issued pursuant to Education Code section 44951, which governs the statutory notice procedure for releasing a certificated employee holding a position requiring an administrative or supervisory credential from that position for the following school year. (See Ed. Code, § 44951; <i>Hayes v. Temecula Valley Unified School Dist.</i>, <i>supra</i>, 21 Cal.App.5th at pp. 746-747 [section 44951 governs the timing and nature of the preliminary notice required before a school district may effect a no-cause reassignment of a school principal].) Plaintiff’s allegation that Defendant later failed to “honor the reassignment” does not establish a violation of section 44951 because the statute governs notice of release from an administrative position, not a guarantee of reassignment to a specific future position. Accordingly, the FAC
--	--	---

		demonstrates compliance with section 44951 rather than a breach of contract or statutory violation. Thus, the demurrer to the first cause of action is SUSTAINED. <u>Second Cause of Action for Intentional Infliction of Emotional Distress (IIED)</u> To prevail on an IIED claim, plaintiff must prove: “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (<i>Hughes v. Pair</i> (2009) 46 Cal.4th 1035, 1050.) To recover for intentional infliction of emotional distress, the employer’s actions must be shown to be “so extreme and outrageous as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.” (<i>Alcorn v. Anbro Eng., Inc.</i> (1970) 2 Cal.3d 493, 499, fn. 5 [“vituperative language or vindictive conduct” must be shown]; <i>Vasquez v. Franklin Mgmt. Real Estate Fund, Inc.</i> (2013) 222 Cal.App.4th 819, 832.) “Outrageous conduct does not include trivialities such as indignities, annoyances, hurt feelings, or bad manners that a reasonable person is expected to endure.” (CACI 1602; see also BAJI 12.74.) The FAC alleges Plaintiff repeatedly reported concerns regarding the alleged misuse of CTE grant funds to multiple District officials, including her supervisor, the Assistant Superintendent of Educational Services, the Director of Business Services, and the Superintendent. (FAC ¶¶ 8-12.) Within 48 hours of raising those concerns with the Director of Business Services, Plaintiff was called into a meeting with Human Resources and her supervisor, where she was “shamed” for contacting the Superintendent, verbally reprimanded for raising concerns regarding grant funds, threatened with “more severe disciplinary action,” told reporting concerns was a “bad look for someone with aspirations,” and warned, “You don’t want this to go into an investigation.” (FAC ¶ 13.) Plaintiff’s supervisor thereafter canceled regular meetings and failed to complete her performance evaluation. (Ibid.) The district administrators repeatedly dismissed Plaintiff’s concerns, blamed Plaintiff for reporting them, and demonstrated that they “valued what [they] considered loyalty over professional competence and integrity.” (FAC ¶¶ 14-15.) In March 2024 Plaintiff was informed she was being “demoted” from her administrative position and reassigned to another position. (FAC ¶ 16.) Despite previously being informed she would be reassigned for the following school year, she was later told she would not be offered any position for the 2024-2025 school year and District officials refused to acknowledge the inconsistency between that decision and the reassignment letter previously provided to her. (FAC ¶¶ 17-19.) Plaintiff’s employment ended on June 30, 2024. (FAC ¶ 20.) The FAC fails to adequately allege facts demonstrating “extreme and outrageous conduct.” The allegations concern workplace criticism, reprimands, retaliation, reassignment, demotion, and termination arising from the employment
--	--	--

		relationship. (FAC ¶¶ 8-20.) However, personnel management actions, including criticism, discipline, reassignment, demotion, and termination, generally do not constitute conduct “so extreme and outrageous as to go beyond all possible bounds of decency.” (See <i>Hughes v. Pair, supra</i>, 46 Cal.4th 1035, 1051 [insults, indignities, threats or annoyances]; <i>Shoemaker v. Myers</i> (1990) 52 Cal.3d 1, 25 [discipline and criticism]; <i>McCoy v. Pacific Maritime Ass’n</i> (2013) 216 Cal.App.4th 283, 295 [isolation and ostracism]; <i>Janken v. GM Hughes Electronics</i> (1996) 46 Cal.App.4th 55, 80 [discriminatory personnel management decisions].) The alleged conduct arose from personnel management decisions and workplace supervision within the employment relationship, which generally cannot support an IIED claim. Thus, the demurrer to the second cause of action is SUSTAINED. Should Plaintiff wish to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 15 days of service of notice of ruling. Defendant to give notice.
54	Evergreen Capital, LLC vs. Ball 25-01535288	Motion to Expunge Lis Pendens The Motion to Expunge Lis Pendens brought by SJO Investments, LLC dba Superior Homebuyers, LLC is MOOT, in part, and GRANTED, in part. It is undisputed this motion has been partially rendered MOOT, by the subsequent withdrawal of the relevant Lis Pendens. (See Opposition: 2:5-7 and Exhibit D attached thereto; See also Reply: 19-20.) Nonetheless, competing requests for attorneys’ fees remain, which require examination of the merits of the underlying Lis Pendens. (See <i>Castro v. Superior Court</i> (2004) 116 Cal.App.4th 1010, 1021-1022.) The Court finds the Notice of Pendency of Action recorded as Document Number 2025000338655 was improperly recorded and GRANTS attorneys’ fees to SJO Investments, LLC dba Superior Homebuyers, LLC, in the amount of \$3,250.00. (Code Civ. Proc., § 405.38.) The competing request for attorneys’ fees made by Evergreen Capital, LLC, is DENIED. The unopposed Request for Judicial Notice filed by SJO Investments, LLC is GRANTED, pursuant to Evidence Code section 452, subdivision (h). (<i>Poseidon Development, Inc. v. Woodland Lane Estates, LLC</i> (2007) 152 Cal.App.4th 1106, 1117.) The relevant Notice of Pendency of Action was improperly recorded on December 5, 2025 (See Exhibit 1 of RJN [ROA No. 12]), prior to the initiation of this action on December 22, 2025. (See ROA No. 2; See also Code Civ. Proc., § 405.20 and <i>Manhattan Loft, LLC v. Mercury Liquors, Inc.</i> (2009) 173 Cal.App.4th 1040, 1051.) In addition to the above, the Notice of Pendency of Action was not properly served or filed. While the Notice of Pendency attaches a Proof of Service, which attests to mail service on Rinn W. Ball and Rosina M. Ball, prior to the recordation: (1) Moving party was not included within the service; and (2) The service was not completed via registered certified mail, as required. (Code Civ.